

		Here, the Court finds that Plaintiff met all procedural requirements and provided all information in support of the proposed amendment pursuant to California Rules of Court, rule 3.1324(a) & (b). Plaintiff shall file the proposed First Amended Complaint within 10 days of this order. Plaintiff to give notice.
107	O’Kane v. Radovich, 2022-01276312	Motion to Continue Trial – MOOT
108	Premier Liberty Development LLC v. Nguyen, 2018-01008782	Plaintiff’s Motion for Summary Judgment – DENIED This case involves the priority of deeds of trust on a piece of commercial real property. Plaintiff Premier Liberty Development’s operative complaint contains a single cause of action for declaratory relief of three issues: (1) the reconveyance of Premier’s deed of trust was forged and the Premier deed of trust remains superior to Defendant Velocity Commercial Capital’s deed of trust (2) Premier had the right to foreclose on its lien created by the Premier deed of trust which remains as a lien on the Property superior to any claim by any defendant (including Velocity) to the Property after the recording of the Premier Deed of Trust; and (3) Velocity must disgorge and refund to Premier all sums which it received as restitution, specifically, the sum of \$2,573,757, together with all accrued interest from and after November 7, 2024, at the legal rate of ten percent (10%). To prevail on a motion for summary adjudication, a plaintiff must show that there is no defense to the cause of action, by proving each element of the cause of action itself. Once plaintiff makes such a showing, the burden shifts to the defendants to show a triable issue of material fact exists as to the cause of action or a defense thereto. (Code Civ. Proc., §437c(p)(1).) “To qualify for declaratory relief under section 1060, plaintiffs were required to show their action presented two essential elements: ‘(1) a proper subject of declaratory relief, and (2) an actual controversy